

be made by the Judicial Committee of the Privy Council in the exercise of the jurisdiction conferred on that Committee under this section, and for its transmission to such authority in Tanganyika as may be specified in the Order, and may contain such other incidental and supplemental provisions as appear to Her Majesty to be desirable.

(4) An Order in Council under this section may, though made after the appointed day, be made so as to have effect from that day, and may be varied or revoked by a subsequent Order in Council.

3 & 4 Will. 4,
c. 41.

(5) Except so far as otherwise provided by an Order in Council under this section, and subject to such modifications as may be so provided, the Judicial Committee Act 1833 shall apply in relation to appeals continued before the Judicial Committee of the Privy Council under this section as it applied in relation to those appeals before the appointed day.

(6) Subject to the provisions of any Order in Council under this section, nothing in this Act shall be construed as continuing in force any right of appeal to Her Majesty in Council from Tanganyika.

Short title.

3. This Act may be cited as the Tanganyika Republic Act 1962.

CHAPTER 2

Pensions (Increase) Act 1962

ARRANGEMENT OF SECTIONS

Section

1. Increase of certain United Kingdom pensions.
2. Additional increase for pensioners over seventy years of age.
3. Supplements in respect of certain colonial and other pensions.
4. Amendment of Pensions (India, Pakistan and Burma) Act 1955.
5. Amendment of Pensions (Increase) Act 1944.
6. Local authority gratuities.
7. Application of Pensions (Increase) Acts to Raw Cotton Commission pensions.
8. Supplementary provisions.
9. Expenses.
10. Interpretation.
11. Short title, citation and extent.

SCHEDULES:

Schedule 1—Amendments and modifications of Pensions (Increase) Act 1959 as applied.

Schedule 2—Persons in receipt of more than one pension.

Schedule 3—Overseas pensions.

Schedule 4—Pension Funds added to Pensions (India, Pakistan and Burma) Act 1955 Schedule 2 Part I paragraph 1.

An Act to provide for increases or supplements in respect of certain pensions. [20th December, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, the annual rate of any pension to which this section applies, being a pension which began not later than 1st April 1961, may, in respect of any period beginning on or after the appointed day, be increased by the pension authority by an amount equal to the following percentage of the adjusted rate of that pension, that is to say—

Increase of certain United Kingdom pensions.

- (a) if the pension began not later than 1st April 1956, twelve per cent. ;
- (b) if the pension began after the last-mentioned date but not later than 1st April 1957, ten per cent. ;
- (c) if the pension began after the last-mentioned date but not later than 1st April 1958, eight per cent. ;
- (d) if the pension began after the last-mentioned date but not later than 1st April 1959, six per cent. ;
- (e) if the pension began after the last-mentioned date but not later than 1st April 1960, four per cent. ;
- (f) if the pension began after the last-mentioned date, two per cent.

(2) This section applies to the pensions specified in Part I and Part II of the Schedule to the Act of 1959; and that Schedule shall have effect, in its application by virtue of this section, subject to the amendments set out in Part I of Schedule 1 to this Act.

(3) Subsections (2) to (6) of section 1 of the Act of 1959 (which prescribe the conditions for the increase of a pension under that section) shall apply to the increase authorised by this section as they apply to the increase authorised by subsection (1) of that section.

2.—(1) Subject to the provisions of this section, where a person in receipt of a pension which may be increased under the foregoing section of this Act has attained the age of seventy years (whether before or after the appointed day), that pension may, in respect of any period beginning on or after the appointed day, be further increased by the pension authority by the following annual amount, that is to say—

Additional increase for pensioners over seventy years of age.

- (a) if the pension began not later than 1st April 1956, twenty pounds ;
- (b) if the pension began after the last-mentioned date but not later than 1st April 1957, seventeen pounds ;

- (c) if the pension began after the last-mentioned date but not later than 1st April 1958, fourteen pounds ;
- (d) if the pension began after the last-mentioned date but not later than 1st April 1959, ten pounds ;
- (e) if the pension began after the last-mentioned date but not later than 1st April 1960, seven pounds ;
- (f) if the pension began after the last-mentioned date, four pounds.

(2) A pension shall not be increased under this section by an amount exceeding twenty-five per cent. of the adjusted rate of that pension.

(3) The provisions of Schedule 2 to this Act shall have effect for the purpose of calculating the increase which may be made under this section in the case of a pensioner in receipt of more than one pension.

(4) For the purposes of this section and of Schedule 2 to this Act, a person for whose benefit a pension is payable shall be deemed to be in receipt of the pension notwithstanding that it is payable to some other person.

Supplements in respect of certain colonial and other pensions.

3.—(1) The Secretary for Technical Co-operation may, with the approval of the Treasury, make regulations authorising the payment by him, in respect of pensions to which this section applies, or any class of such pensions, of supplements of such amounts as may be specified in the regulations in accordance with this section.

(2) This section applies to any pension described in Schedule 3 to this Act, being a pension which—

- (a) is payable to or in respect of a person who is certified by the Secretary for Technical Co-operation, with the consent of the Treasury, as having been an overseas officer in relation to any territory in or for which any services giving rise to the pension were rendered ; and
- (b) in the case of a pension in respect of the services of any person other than the pensioner, is payable either by the Government of any overseas territory or in accordance with an enactment, scheme or other instrument specified in the regulations as being approved by the Secretary for Technical Co-operation for the purposes of this section ;

and for the purposes of this section and the said Schedule 3 “pension” does not include compensation which is payable by instalments over a fixed period and which appears to the Secretary for Technical Co-operation to be payable in consequence of constitutional changes in any territory.

(3) The supplements which may be authorised by regulations under this section in the case of pensions of any class are supplements, in respect of any period beginning on or after the appointed day, of amounts which, together with any increase or supplement payable in respect of those pensions apart from this section, appear to the Secretary for Technical Co-operation to correspond as nearly as may be with the increases payable under any of the previous Pensions (Increase) Acts or this Act in the case of pensions to which these enactments apply.

(4) No supplement shall be payable by virtue of regulations under this section in respect of any pension—

(a) where the pension is payable in any overseas territory in or for which any services giving rise to the pension were rendered, unless the pensioner is for the time being resident in the United Kingdom ;

(b) where the pension is not payable in any such territory, if the pensioner is for the time being resident in any such territory (not being so resident solely for the purposes of a contract of service with the Government of that territory).

(5) Regulations under this section may make different provisions in relation to different classes of pension and may—

(a) prescribe the manner in which applications for supplements under this section are to be made and the evidence required in connection with such applications ; and

(b) contain such other incidental provisions as the Secretary for Technical Co-operation thinks fit, including provisions applying any provision of the previous Pensions (Increase) Acts or this Act, with or without modification, for the purposes of the regulations.

(6) The consent of the Treasury under subsection (2) of this section may be given generally in respect of persons of such descriptions, and subject to such limitations (if any), as may be specified in the consent.

(7) The power to make regulations under this section shall be exercisable by statutory instrument, and any statutory instrument made by virtue of this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

4.—(1) Paragraph 1 of Part I of Schedule 2 to the Pensions Amendment (India, Pakistan and Burma) Act 1955 (pensions to which of Pensions (Increase) Acts may be applied) shall have effect as if (India, Pakistan and Burma) the Funds specified in Part I and Part II of Schedule 4 to this Act were included among the Funds mentioned in sub-paragraph Act 1955, (b) of that paragraph,

(2) In relation to the Funds specified in Part II of the said Schedule, the said paragraph 1 shall have effect as if the words "which is or, but for any arrangements to which subsection (1) of section one of this Act applies, would be, payable out of the revenues of India or Pakistan" were omitted.

(3) Nothing in this section shall affect the operation of the said paragraph 1 in relation to a pension in respect of service to the Crown in a civil capacity, not being service by virtue of which the recipient has pension rights in relation to any Fund mentioned in that paragraph as amended by this section.

Amendment of
Pensions
(Increase) Act
1944.

5.—(1) Subsection (3) of section 1 of the Pensions (Increase) Act 1944 (which prescribes the conditions of the increase under that section of pensions payable to dependants other than widows and which also governs certain increases under subsequent Pensions (Increase) Acts) shall have effect, in relation to any period beginning on or after the appointed day, as if the following paragraph were substituted for paragraph (b):—

"(b) the pensioner has not attained the age of sixteen years, or is receiving full-time instruction at an educational establishment, or is undergoing training for a trade, profession or vocation in such circumstances that he is required to devote the whole of his time to that training for a period of not less than two years; or"

(2) References in any enactment (including this Act) to an increase under the said Act of 1944, and to an increase under any other enactment which is subject to the conditions prescribed by the said subsection (3), shall, as from the appointed day, include references to any such increase which is payable by virtue of this section.

Local
authority
gratuities.

6.—(1) For the purposes of this Act, and for the purposes of the previous Pensions (Increase) Acts (other than the Acts of 1920 and 1924) in their application to any period beginning on or after the appointed day, the expression "pension" shall be deemed to include the following gratuities payable in respect of local government service, that is to say:—

(a) any gratuity granted by way of periodical payments under section 23 of the Local Government and other Officers' Superannuation Act 1922, section 11 of the Local Government Superannuation Act 1937 or section 11 of the Local Government Superannuation (Scotland) Act 1937;

(b) any gratuity granted by way of periodical payments or by way of an annuity under section 18 of the Local Government Superannuation Act 1953; and

- (c) any gratuity granted by way of periodical payments or by way of an annuity under any local Act corresponding to any of the enactments mentioned in paragraphs (a) and (b) of this subsection.

(2) Notwithstanding anything in section 5 (2) of the Act of 1959, or any corresponding provision of the previous Pensions (Increase) Acts, a local authority shall not be required to increase any gratuity which that authority has power to increase by virtue of this section.

(3) In paragraph (c) of subsection (1) of this section, "local Act" includes a provisional order confirmed by Parliament; and any question whether a local Act corresponds to any of the enactments mentioned in paragraphs (a) and (b) of that subsection shall be determined, in the event of dispute, by the Minister of Housing and Local Government, or, in Scotland, the Secretary of State.

(4) The reference in this section to section 23 of the Local Government and other Officers' Superannuation Act 1922 includes a reference to paragraph 4 of Schedule 1 to the Local Government (Clerks) Act 1931.

(5) References in any enactment (including this Act) to an increase under any of the previous Pensions (Increase) Acts shall, as from the appointed day, include references to any such increase which is payable by virtue of this section.

7.—(1) This section applies to any pension payable under section 5 (8) of the Cotton (Centralised Buying) Act 1947 or in pursuance of directions given under section 4 (2) of the Cotton Act 1954.

Application of
Pensions
(Increase) Acts
to Raw Cotton
Commission
pensions.

(2) The Treasury may make regulations directing that, subject to such modifications, adaptations and exceptions as may be specified in the regulations,—

- (a) the Pensions (Increase) Act 1952 shall apply in relation to any pension to which this section applies as if that pension were specified in Part I of Schedule 1 to that Act;
- (b) the Pensions (Increase) Act 1956 shall apply in relation to any pension to which this section applies as if that pension were specified in Part I of Schedule 1 to that Act;
- (c) the Act of 1959 and this Act shall apply in relation to any pension to which this section applies as if that pension were specified in Part I of the Schedule to the Act of 1959.

(3) The power to make regulations under this section shall be exercisable by statutory instrument, and any statutory instrument made by virtue of this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Supplementary provisions.

8.—(1) In calculating the amount of a pension for the purposes of any relevant increase within the meaning of the Act of 1959, any increase of that pension authorised by section 1 or section 2 of this Act shall be disregarded; and in ascertaining the rate of a pension granted to any person by reference to the rate of some other person's pension, no account shall be taken of any increase of that other person's pension under the said section 1 or section 2.

(2) The provisions of sections 2 to 6 of the Act of 1959 (except subsection (3) of section 5, which corresponds with subsection (1) of this section, and except subsection (1) of section 6, which corresponds with the next following section) shall apply for the purposes of this Act, and accordingly shall have effect subject to the modifications set out in Part II of Schedule 1 to this Act.

Expenses.

9. There shall be defrayed out of moneys provided by Parliament—

- (a) any expenditure incurred by a government department under or by virtue of this Act;
- (b) any increase attributable to any provision of this Act in the sums payable out of moneys so provided under any other enactment.

Interpretation.

10.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“the Act of 1959” means the Pensions (Increase) Act 1959;

“adjusted rate”, in relation to a pension, means the aggregate annual rate of that pension after any relevant increase within the meaning of the Act of 1959, any fraction of a pound in that aggregate being treated as a whole pound;

“the appointed day” means the earliest day after the passing of this Act which is the first day of a calendar month;

“overseas territory” means any territory or country outside the United Kingdom, and “Government of an overseas territory” includes a Government constituted for two or more overseas territories and any authority

established for the purpose of providing or administering services which are common to, or relate to matters of common interest to, two or more overseas territories;

“pension” and “pension authority” have the same meanings as in the Act of 1959;

“the previous Pensions (Increase) Acts” means the Pensions (Increase) Acts 1920 and 1924, the Pensions (Increase) Acts 1944 and 1947, the Pensions (Increase) Act 1952, the Pensions (Increase) Act 1954, the Pensions (Increase) Act 1956 and the Pensions (Increase) Act 1959.

(2) Unless the context otherwise requires, any reference in this Act to any enactment is a reference thereto as amended, extended or applied by or under any other enactment, including this Act.

11.—(1) This Act may be cited as the Pensions (Increase) Act 1962; and this Act and the previous Pensions (Increase) Acts may be cited together as the Pensions (Increase) Acts 1920 to 1962. Short title,
citation and
extent.

(2) Except for the purpose of the increase of pensions payable under Schedule 8 to the Government of Ireland Act 1920, or payable under or by virtue of any other Act extending to Northern Ireland out of the Consolidated Fund of the United Kingdom or out of moneys provided by the Parliament of the United Kingdom, this Act does not extend to Northern Ireland.

SCHEDULES

SCHEDULE 1

Sections 1 and 8.

AMENDMENTS AND MODIFICATIONS OF PENSIONS (INCREASE) ACT 1959 AS APPLIED

PART I

AMENDMENTS OF SCHEDULE

1. In Part I, at the end of paragraph 10, there shall be added the words “or by way of such compensation as is mentioned in section 7 (1) (b) of this Act in pursuance of an order made under section 11 (9) of the said Act of 1946”.

2. In Part I, after paragraph 24, there shall be added—

“25. A pension payable under any relevant pension enactment (as defined in the Judicial Pensions Act 1959) to a person who retired before 9th July 1959.”

3. In Part II, in paragraph 3, after the words “the Police Pensions Act 1948” there shall be inserted the words “under the Police (Scotland) Act 1956”.

SCH. 1

4. In Part II, in paragraph 4, the word "whole-time" shall be omitted.

5. In Part II, in paragraph 7, for the words "the passing of this Act" there shall be substituted the words "the passing of the Pensions (Increase) Act 1962".

6. In Part II, after paragraph 9, there shall be added—

"10. A pension payable under section 22 of the Administration of Justice (Pensions) Act 1950".

PART II

MODIFICATIONS OF SECTIONS 2 TO 6

7. Any reference to the Pensions (Increase) Act 1959 (except in a reference to a specified provision or to the passing of that Act) shall include a reference to this Act.

8. Any reference to section 1 of that Act (including the reference to subsection (1) of that section in section 3 (2)) shall include a reference to sections 1 and 2 of this Act; and the said reference in section 3 (2) shall include a reference to the definition of "adjusted rate" in section 10 of this Act and to Schedule 2 of this Act.

9. In relation to any period beginning on or after the appointed day for the purposes of this Act, the references in section 2 (1) and in section 4 (2) to any relevant increase of a pension shall include references to any increase authorised by section 1 or section 2 of this Act.

10. The reference in section 3 (3) (b) to the increases which would be payable if pensions therein mentioned were specified in the Schedule to that Act shall include a reference to any increase authorised by section 1 or section 2 of this Act which would be payable in that event.

11. In relation to any increase to be authorised or granted in connection with an increase authorised by section 1 or section 2 of this Act, the references in section 3 (4) and section 4 to the appointed day shall be construed as references to the appointed day for the purposes of this Act, and the references in section 4 to the passing of that Act shall be construed as references to the passing of this Act.

12. The reference in subsection (3) of section 6 to that section shall include a reference to section 9 of this Act.

Section 2.

SCHEDULE 2

PERSONS IN RECEIPT OF MORE THAN ONE PENSION

1. In this Schedule—

"relevant pension" means a pension which may be increased under section 2 of this Act;

"authorised increase" means an increase which may be made under that section;

“service pension” means a pension granted under any Order in Council, Royal Warrant or order of Her Majesty, in respect of service in Her Majesty’s naval, military or air forces, whether that service has been rendered by the pensioner or by any other person.

SCH. 2

2. Where the pensioner is in receipt of more than one relevant pension, the authorised increases in respect of both or all of those pensions shall not in the aggregate exceed the amount which would represent the authorised increase if he were in receipt of a single pension at a rate equal to the aggregate of the adjusted rates of those pensions and beginning at the time when the earliest of them began; and where the said increases, as ascertained apart from this paragraph, would exceed that amount, the authorised increase in the case of each of the pensions shall be calculated by dividing that amount between them in proportion to the said increases as ascertained as aforesaid.

3. Where two persons being husband and wife are each in receipt of a relevant pension, then if one of those pensions has been granted by the pension authority in consideration of the surrender of part of the other pension under any arrangement providing for such surrender and grant, paragraph 2 of this Schedule shall apply as if the pensioner by whom the said part was surrendered were in receipt of each of those pensions.

4.—(1) Subject to the provisions of this paragraph, where a person who is in receipt of a relevant pension is also in receipt of a service pension, paragraphs 2 and 3 of this Schedule shall apply for the purpose of ascertaining the authorised increase of the relevant pension as if the service pension were also a relevant pension.

(2) A service pension shall be disregarded for the purposes of this paragraph if—

- (a) the pension has been granted solely on account of death or disablement which is attributable to service in Her Majesty’s naval, military or air forces; or
- (b) the pension has been granted partly on account of death or disablement which is attributable to such service, and no specific part of the pension is referable to the death or disablement;

and where any service pension has been granted partly on account of death or disablement which is attributable to service in Her Majesty’s naval, military or air forces and a specific part of the pension is referable to the death or disablement, the pension shall, for the purposes of this paragraph, be deemed to be reduced by the amount of that part.

(3) For the purposes of this paragraph, the death or disablement of any person shall be treated as attributable to service in Her Majesty’s naval, military or air forces, if it is wholly or partly due to any wound, injury or disease which has been caused or aggravated by such service.

5. Where a person who is in receipt of a relevant pension is also in receipt of another pension (not being a relevant pension or a service pension) in the case of which an increase is payable under

SCH. 1

any scheme (wherever in force and whether or not authorised by or under any enactment) determined by the Treasury for the purposes of this paragraph to be similar to the provisions of section 2 of this Act, paragraphs 2 and 3 of this Schedule shall apply, subject to such modifications, if any, as the Treasury may direct, for the purpose of ascertaining the authorised increase of the relevant pension as if the other pension were also a relevant pension.

6.—(1) Where a person who is in receipt of a relevant pension is also in receipt of another pension (not being a relevant pension) in the case of which an increase is payable under section 2 of the Act of 1959 by reference to an increase which would have been payable in respect of that pension under section 2 of this Act if that person had not rendered further service, the authorised increase of the relevant pension shall not exceed the amount which would represent the authorised increase of that pension if no such further service had been rendered.

(2) Where two persons being husband and wife are each in receipt of a pension, then if one of those pensions has been granted by the pension authority in consideration of the surrender of part of the other pension under any arrangement providing for such surrender and grant, this paragraph shall apply as if the pensioner by whom the said part was surrendered were in receipt of each of those pensions.

SCHEDULE 3

OVERSEAS PENSIONS

Section 3.

1. A pension in respect of service under the Government of an overseas territory by a person who—

- (a) was at any time selected for initial appointment to service under the Government of an overseas territory by a Secretary of State, or was recruited by the Crown Agents for Oversea Governments and Administrations, or
- (b) was at any time recruited to a post for which, in the opinion of the Secretary for Technical Co-operation, a normal channel of recruitment would have been either the Colonial Office or the Crown Agents for Oversea Governments and Administrations, or
- (c) was at any time a member of Her Majesty's Overseas Civil Service or Her Majesty's Overseas Judiciary, or
- (d) was at any time a designated officer under an Overseas Service Aid Scheme Agreement.

2. A pension in respect of service under the Sudan Government by a person who, in the opinion of the Secretary for Technical Co-operation, entered the service of that Government in a pensionable capacity before 17th July 1954.

3. A pension in respect of service under the Egyptian Government by a person who, in the opinion of the Secretary for Technical Co-operation, entered the service of that Government in a pensionable capacity before 15th March 1922, and who was a British subject when he entered such service.

4. A pension for the payment of which the Crown assumed responsibility under the Instrument of Cession of Sarawak dated 21st May 1946 or the North Borneo Transfer Agreement dated 26th June 1946.

SCH. 3

5. A pension in respect of service in any of the armed forces of the Crown raised in an overseas territory, not being a pension payable under any warrant or other instrument made by virtue of Her Majesty's prerogative in respect of such forces.

SCHEDULE 4

Section 4.

PENSION FUNDS ADDED TO PENSIONS (INDIA, PAKISTAN AND BURMA)
ACT 1955 SCHEDULE 2 PART I PARAGRAPH 1

PART I

The Indian Civil Service Family Pension Fund (Untransferred).
The Superior Services (India) Family Pension Fund (Untransferred).
The Indian Military Widows' and Orphans' Fund (Untransferred).
The Indian Military Service Family Pension Fund (Untransferred).
The Bengal and Madras Service Family Pension Fund.

PART II

The Indian Civil Service Family Pension Fund (Transferred).
The Superior Services (India) Family Pension Fund (Transferred).
The Indian Military Widows' and Orphans' Fund (Transferred).
The Indian Military Service Family Pension Fund (Transferred).

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Pensions (Increase) Act 1920	10 & 11 Geo. 5. c. 36.
Government of Ireland Act 1920	10 & 11 Geo. 5. c. 67.
Local Government and other Officers Superannuation Act 1922	12 & 13 Geo. 5. c. 59.
Pensions (Increase) Act 1924	14 & 15 Geo. 5. c. 32.
Local Government (Clerks) Act 1931	21 & 22 Geo. 5. c. 45.
Local Government Superannuation Act 1937	1 Edw. 8 & 1 Geo. 6. c. 68.
Local Government Superannuation (Scotland) Act 1937	1 Edw. 8 & 1 Geo. 6. c. 69.
Pensions (Increase) Act 1944	7 & 8 Geo. 6. c. 21.
Pensions (Increase) Act 1947	10 & 11 Geo. 6. c. 37.
Cotton (Centralised Buying) Act 1947 ...	10 & 11 Geo. 6. c. 26.
Police Pensions Act 1948	11 & 12 Geo. 6. c. 24.
Administration of Justice (Pensions) Act 1950	14 & 15 Geo. 6. c. 11.
Pensions (Increase) Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 45.
Local Government Superannuation Act 1953	1 & 2 Eliz. 2. c. 25.
Cotton Act 1954	2 & 3 Eliz. 2. c. 24.
Pensions (Increase) Act 1954	2 & 3 Eliz. 2. c. 25.
Pensions (India, Pakistan and Burma) Act 1955	3 & 4 Eliz. 2. c. 22.
Police (Scotland) Act 1956	4 & 5 Eliz. 2. c. 26.
Pensions (Increase) Act 1956	4 & 5 Eliz. 2. c. 39.
Pensions (Increase) Act 1959	7 & 8 Eliz. 2. c. 50.
Judicial Pensions Act 1959	8 & 9 Eliz. 2. c. 9.